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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/04/2025
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

VIA LICENSING ALLIANCE LLC (FKA VIA LICENSING CORPORATION), Plaintiff, v. HP INC., Defendant.	Case No.: CGC-24-614454 **PLAINTIFF'S APPLICATION TO SEAL DEFENDANT'S MOTION TO CONTINUE TRIAL** Dept: 302 Date: April 7, 2025 Time: 9:00 a.m. Trial Date: May 5, 2025 Complaint Filed: May 8, 2024

TO DEFENDANT AND ITS COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on April 7, 2025, at 9:00 a.m., or as soon thereafter as the matter may be heard, in Department 302 of this Court, located at 400 McAllister Street, San Francisco, California 94102, Plaintiff Via Licensing Alliance LLC will and hereby does apply, under California Rules of Court, rule 2.551(b)(3)(B), for an order sealing the unredacted versions of (1) HP, Inc.'s Motion to Continue Trial ("HP's Motion") (Feb. 19, 2025) and (2) the Declaration of Timothy A. Miller in Support of HP's Motion to Continue Trial (Feb. 19, 2025) ("Miller Declaration"). HP has lodged the unredacted versions of these papers conditionally under seal, and HP has publicly filed redacted versions of these papers. This motion to seal is made on the ground that the unredacted versions of these papers contain Via's confidential information, and the public disclosure of such information would be prejudicial to Via.

This application to seal is based upon this notice, the attached memorandum of points and authorities, the declaration of Kyle Niemi ("Niemi Declaration"), and the files and records in this action.

Dated: March 4, 2025

WILLENKEN LLP

By: _____

Kirby Hsu
Attorneys for Plaintiff
VIA LICENSING ALLIANCE LLC

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Under California Rules of Court, rule 2.551(b)(3)(B), Via respectfully requests an order to seal the unredacted versions of HP's Motion and the Miller Declaration, which have been lodged conditionally under seal. HP has publicly filed redacted versions of these papers.

Via is the administrator for licensors that own or have rights to certain patents. Niemi Decl. ¶ 2. The terms of Via's agreements to license patents to specific licensees, including, among other things, any amounts paid by licensees and the governing intellectual property protection provisions under the agreements, are subject to contractual confidentiality obligations and are information that Via does not disclose publicly. *Id.* ¶ 7. In addition, Via considers as confidential its negotiation strategies for its decisions whether and on what terms it would consent to a novation or assignment of license agreements, which strategies would be revealed if the exhibits to the Miller Declaration were publicly disclosed. *Id.*

The unredacted versions of HP's Motion and the Miller Declaration contain Via's highly confidential information described above, relating to the confidential terms of a specific agreement between Via and nonparty Kingston Technology Company, nonpublic payment amounts owed by Kingston under the agreement, and Via's negotiation strategy and considerations for consenting to the novation of the agreement. *Id.* ¶¶ 4-6. The publicly filed versions of HP's Motion and the Miller Declaration contain redactions of such information, and substantial portions of these papers remain public.

II. LEGAL STANDARD

The Court may order that files be sealed when it expressly finds facts that establish:

> (1) There exists an overriding interest that overcomes the right of public access to the record;
> (2) The overriding interest supports sealing the record;
> (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
> (4) The proposed sealing is narrowly tailored; and
> (5) No less restrictive means exist to achieve the overriding interest.

Cal. Rules of Court, rule 2.550(d).

III. DISCUSSION

Exhibits B, E, F, G, H, I, J, K, L, M, N, and R to the unredacted version of the Miller Declaration contain Via's highly confidential information.[1] Niemi Decl. ¶¶ 4-6. In addition, the body of the unredacted version of the Miller Declaration and the unredacted version of HP's Motion refer to and describe that confidential information throughout.

Specifically, the exhibits contain or refer to the confidential terms of a patent licensing agreement between Via and nonparty Kingston; nonpublic royalty payment amounts owed by Kingston under the licensing agreement; and Via's negotiation strategies for its decisions whether and on what terms it would consent to a novation or assignment of license agreements. Niemi Decl. ¶¶ 4-6. Via closely controls access to this confidential information and does not share it with competitors or with the public. *Id.* ¶ 8.

There is a substantial probability that Via's overriding interest in preserving this proprietary, sensitive information will be prejudiced if these records are not sealed. They contain confidential information of a specific patent license agreement and Via's business practices, the disclosure of which would have economic value to its competitors and deter potential licensees from working with Via. *Id.* ¶ 7; *see also McGuan v. Endovascular Techs., Inc.*, 182 Cal. App. 4th 974, 988 (2010) (affirming sealing of records that provide details regarding the defendants' business that would have "economic value" to "[d]efendants' competitors"). The expectation and practice in the industry is that such information be kept confidential, and Via has contractual nondisclosure obligations consistent with those expectations and practices. Niemi Decl. ¶¶ 7-8. Disclosure of such information would harm

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[1] Via requests sealing of twelve of HP's exhibits, but eleven of those exhibits are cumulative of one another and not necessary for HP's Motion. Exhibits B, E, F, J, K, M, and N are all emails from the same email thread. *See* Miller Decl. Exs. B, E, F, J, K, M, N. Likewise, Exhibits G, H, I, and L are emails from the same email thread. *See id.* Exs. G, H, I, L. HP should have "exercise[d] . . . discipline as to the confidential documents" it attached as exhibits to the Miller Declaration. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.*, 231 Cal. App. 4th 471, 499 (2014) (explaining it is an "abusive" litigation practice if "[m]ultiple documents were submitted to support a claim, when one would have sufficed," or if "[e]ntire documents were submitted, when only a page or two were identified as containing matter relevant to the issues").

Via's ability to compete for future agreements with potential licensees or for the formation of other licensing pools. *Id.* ¶ 8. Moreover, the exhibits containing this information were produced in discovery subject to confidentiality protections under the Stipulated Protective Order (Dec. 10, 2024). *See Overstock.com, Inc. v. Goldman Sachs Grp., Inc.*, 231 Cal. App. 4th 471, 484 (2014) ("When a court grants a protective order for information produced during discovery, it already has determined that 'good cause' exists to protect this information from being disclosed to the public by balancing the needs for discovery against the need for confidentiality." (quoting *Phillips v. General Motors Corp.*, 307 F.3d 1206, 1213 (9th Cir. 2002))).

The proposed sealing is narrowly tailored, and there is no less restrictive means to achieve the overriding interest in preserving the confidentiality of this information. The publicly filed versions of HP's Motion and the Miller Declaration have redacted the confidential information, and significant portions of both conditionally sealed documents remain public.

IV. CONCLUSION

According, Via respectfully requests this Court enter an order to seal the unredacted versions of HP's Motion and the Miller Declaration, which have been lodged conditionally under seal.

Dated: March 4, 2025

WILLENKEN LLP

By: _____

Kirby Hsu
Attorneys for Plaintiff
VIA LICENSING ALLIANCE LLC

PROOF OF SERVICE

STATE OF CALIFORNIA
COUNTY OF LOS ANGELES

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 707 Wilshire Boulevard, Suite 4100, Los Angeles, CA 90017.

On the date below, I served the document(s) described as:

PLAINTIFF'S APPLICATION TO SEAL DEFENDANT'S MOTION TO CONTINUE TRIAL

on each of the interested parties in this action.

☐ By placing ☐ the original ☐ true copies thereof enclosed in sealed envelopes addressed as follows:

Timothy A. Miller, Esq.
Patrick T. Freeman, Esq.
VALLE MAKOFF LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065-1422
Telephone: (650) 966-5113
Facsimile: (650) 240-0485
Email: tmiller@vallemakoff.com
pfreeman@vallemakoff.com

Attorneys for Defendant HP INC.

☐ **(BY U.S. MAIL)** I placed such envelope in the mail at Los Angeles, California. The envelope was mailed with postage thereon fully prepaid. I am "readily familiar" with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with U.S. Postal Service on that same day with postage thereon fully prepaid at Los Angeles, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

☒ **(VIA ELECTRONIC SERVICE)** The document was served via electronic transfer upon the parties listed using their e-mail addresses as shown in the service list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

☒ **(STATE)** I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on **March 4, 2025**, at Los Angeles, California.

Lisa S. Gibbons
(Type or Print Name)

Lisa Gibbons
Signature